

## Multiple Choice

1. **Answer:** A

*Options:* A) Justiciability refers to the limitation of a State to enforce a particular right; B) Justiciability refers to the ethical implications of a particular right; C) Justiciability refers to the just nature or cause of a particular right; D) Justiciability refers to the availability of legal remedies for a particular right; E) Justiciability refers to the obligation of a State to enforce a particular Right

*Note:* The correct answer is accurate because justiciability pertains to whether a legal issue is appropriate for adjudication in a court of law, emphasizing the constraints on a state's ability to enforce rights, thereby defining the scope of judicial intervention in constitutional matters.

2. **Answer:** A

*Options:* A) quasi contract; B) unilateral contract; C) secondary party beneficiary contract; D) express contract; E) bilateral contract

*Note:* This is a quasi contract because, despite the illegal nature of the agreement, the law may recognize a duty to prevent unjust enrichment between the parties involved.

3. **Answer:** A

*Options:* A) 'Difference feminism argues that men and women are fundamentally the same.'; B) Men are unable to comprehend their differences from women.'; C) 'Men and women differ only in physical attributes, not in their thought processes.'; D) 'Men are more inclined towards justice, while women tend to focus on fairness.'; E) There are fundamental differences between individual women.'

*Note:* The correct answer is misleading because difference feminism actually posits that men and women have inherently different qualities and experiences, emphasizing the value of these differences rather than suggesting they are fundamentally the same.

4. **Answer:** B

*Options:* A) Postmodernism disregards individual stories.; B) Universal values are meaningless.; C) Literature reproduces repression.; D) The concept of truth is objective and undeniable.; E) The law is static.

*Note:* Lyotard's assertion highlights the skepticism towards overarching narratives or ideologies that claim to offer universal truths or values, thereby suggesting that such claims are ultimately meaningless in a postmodern context.

5. **Answer:** A

*Options:* A) It distinguishes social rules from mere group habits.; B) It defines the judicial function.; C) It illustrates the authority of the legislature.; D) It stresses the relationship between law and justice.

*Note:* The 'internal point of view' is essential in Hart's concept of law as it emphasizes the perspective of individuals who accept and follow social rules, thereby distinguishing

these rules from mere group habits which lack normative significance and a sense of obligation.

## True / False

6. **Answer:** True

*Options:* A) True; B) False

*Note:* Kelsen's pure theory of law asserts that law should be understood as an autonomous system, distinct from other social phenomena such as religion, ethics, sociology, and history, thereby emphasizing its separation from these domains.

7. **Answer:** True

*Options:* A) True; B) False

*Note:* Prior to the United Nations Charter, international law primarily recognized the right to use armed force in self-defense, emphasizing the sovereignty of states and the principle of non-intervention, while limiting other forms of military engagement.

8. **Answer:** True

*Options:* A) True; B) False

*Note:* A warranty of fitness for a particular purpose is established when the seller, having knowledge of the buyer's specific requirements, assures that the product will meet those needs, creating a legal obligation to provide a suitable item.

9. **Answer:** True

*Options:* A) True; B) False

*Note:* The Sixth Amendment right to counsel is applicable only at critical stages of a criminal prosecution, and investigative surveillance is not considered such a stage, meaning an indigent person does not have this right during that phase.

10. **Answer:** False

*Options:* A) True; B) False

*Note:* The statement is false because dying declarations are only admissible as exceptions to hearsay rules if the declarant believed their death was imminent, which is not universally applicable to all hearsay testimony.

## Long Form Response

11. **Answer:** In the scenario where the defendant intentionally stabbed the victim and subsequently pushed him out of the car, the defendant's conduct can establish criminal responsibility for the victim's death due to the doctrine of proximate cause. The defendant's initial act of violence directly led to the victim's incapacitation, resulting in his fatal accident half an hour later when a drunk driver struck him. This chain of events illustrates that the defendant's actions were not only intentional but also created a foreseeable risk of serious harm to the victim. Thus, the legal principle of causation holds the defendant accountable for the victim's death, as the stabbing was

a substantial factor in the series of events culminating in the fatal injury.

*Note:* correct because it demonstrates that the defendant's intentional act of stabbing the victim created a direct causal link to the victim's later death, fulfilling the requirements of proximate cause and establishing criminal responsibility for the consequences of their actions.

12. **Answer:** In criminal law, solicitation is defined as the act of enticing or urging another person to commit a crime, without necessarily forming an agreement to do so. This distinction is critical because solicitation focuses on the individual's intention to persuade rather than achieving a mutual understanding or agreement with another party to commit the crime. The absence of an agreement is significant; it underscores the idea that solicitation is about the solicitation itself-attempting to incite criminal behavior-rather than the fruition of any collaborative intent to engage in illegal activity. Therefore, while an agreement between parties to commit a crime is a characteristic of conspiracy, it is not inherent to solicitation, which remains a unilateral act of encouragement or persuasion toward criminal conduct.

*Note:* correct because it emphasizes that solicitation involves the act of encouraging another to commit a crime based on the individual's intent, rather than requiring a mutual agreement, which differentiates it from other conspiratorial offenses in criminal law.